

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

JOINT STATUS REPORT

Pursuant to the Presiding Officer's May 27, 2025 Order on Joint Motion to Extend Deadlines, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. ("BBBY" or "Complainant") and Respondent BAL Container Line Co., Limited ("BAL" or "Respondent") (BBBY collectively with Respondent, the "Parties"), by their respective undersigned counsel, submit this joint status report with an updated proposed schedule.

Status of Complainant's Productions and Discovery

Complainant made its first document production on July 9, 2025, consisting of 6,534 pages and 22 native documents. Complainant made its second production on July 11 consisting of 465 pages. Complainant will make a third production on July 15, 2025 consisting of approximately 2,000 documents. Complainant is continuing to review a set of documents that were screened for privilege purposes and will make a final production following privilege review.

Plaintiff has also issued a subpoena to its former third-party logistics provider Yusen Logistics (Americas) Inc. and anticipates receiving documents on a rolling basis during the next 30 days based on discussions between Complainant, Respondent, and Yusen. Complainant may also seek an additional subpoena towards one additional former logistics vendor.

Status of Respondent's Productions and Discovery

Pursuant to a discussion between counsel, Respondent will be producing all those

responsive documents that is has located after a reasonably diligent search, on July 16, 2025. As was discussed in Respondent's Opposition to Claimant's Motion to Compel, Respondent does not have many documents that are related to, or relevant to, this case.

Joint Proposed Schedule

The jointly proposed schedule is as follows, which has sought to compress the schedule of expert reports following discovery and briefing as ordered by the Presiding Officer, but which has sought an additional two weeks to complete depositions based on rolling productions from third parties and the need to depose employees from those entities:

EVENT	PROPOSED DEADLINE
Complete depositions of fact witnesses	September 15, 2025
Last day to serve interrogatories, requests for admission, and RFPs	September 15, 2025
Disclosure of initial expert reports, if any	September 30, 2025
Disclosure of rebuttal expert reports, if any	October 30, 2025
Complete expert depositions	November 14 2025
Close of discovery	November 14, 2025
Complainant's initial brief, proposed findings of fact, and appendix	December 5, 2025
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	January 5, 2026
Complainant's reply and responses to proposed findings of fact	January 20, 2026

[SIGNATURE PAGE FOLLOWS]

Dated: July 15, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

THEODORA ORINGHER

Mohini Priya Banerjee Rarrick

/s/ Bryce Cullinane

Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
J. Zachery Morris
(332) 203-4571
zmorris@huthreynolds.com
Gregory A. Crapanzano II
(917) 575-3440
gcrapanzano@huthreynolds.com
Mohini P.B. Rarrick
(818) 235-9753
mpriya@huthreynolds.com
Heewan Noh
(202) 420-9628
hnoh@huthreynolds.com
41 Cannon Court
Huntington, NY 11743

Bryce Cullinane, CASB No. 307079
bcullinane@tocounsel.com
535 Anton Boulevard, Ninth Floor
Costa Mesa, California 92626-7109
Telephone: (714) 549-6200
Facsimile: (714) 549-6201

*Counsel for Respondent BAL Container Line
Co., Limited*

Counsel for 20230930-DK-Butterfly-1, Inc.